

Maya Devi v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 23 November 2021 · Writ-C No. 30855 of 2021 · Writ-C No. 30855 of 2021 · **Writ dismissed; relegated to Executive Engineer under Clause 6.5.**

HEADNOTE

A writ challenging an electricity bill was dismissed for alternative remedy. The petitioner must approach the concerned Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Maya Devi filed Writ-C No. 30855 of 2021 in the High Court of Judicature at Allahabad against the State of Uttar Pradesh and three others, raising a dispute about an electricity bill. Counsel for the petitioner were Mazhar Ullah and Santosh Kumar Srivastava. The Chief Standing Counsel and Mr. Rajesh Yadav appeared for the respondents. The Division Bench of Sunita Agarwal and Krishan Pahal, JJ. heard the petition on 23 November 2021.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternate-remedy

HOLDING

A writ petition raising a dispute about an electricity bill is dismissed on the ground of alternative remedy; the petitioner's remedy is to approach the concerned Executive Engineer by invoking Clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the electricity bill was dismissed because Clause 6.5 supplies the alternative remedy before the Executive Engineer. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The Court treated the billing dispute as one to be invoked before the concerned Executive Engineer under Clause 6.5 of the Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

Merits of the billing dispute were not examined; the petitioner was relegated to the Executive Engineer under Clause 6.5. ¶ 1